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File No.: EXP202303521

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The CITY COUNCIL OF ALBACETE (hereinafter, the complainant), on February 13, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against Mr. A.A.A. with NIF ***NIF.1 (hereinafter, the defendant), for the installation of a video surveillance system located at STREET ***ADDRESS.1, ALBACETE, with indications of a possible violation of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

The complainant provides a report dated February 8, 2023, prepared by agents of the LOCAL POLICE OF ALBACETE, which reveals that, after carrying out file EXP202300060, which indicated that the defendant was responsible for two cameras facing the public road, without prior administrative authorization for this and without being properly marked with the required informative signs of the monitored area, they have verified that the aforementioned cameras continue to be located recording the public road, although a sign indicating the monitored area is installed nearby.

The documents provided are:

- Reports made by the FFCCSE
- Photographic report

SECOND: The defendant had been sent a letter from the AEPD indicating the obligations they had regarding data protection and video surveillance, having been notified by postal mail on January 31, 2023, according to the acknowledgment of receipt in the file. According to the new complaint, the report indicates that there is a sign of the monitored area, which indicates that the defendant has taken measures at that point, but in the second paragraph of the report, it states that the cameras record the public road, without it being noted in the report that the defendant has proven otherwise.

THIRD: On October 2, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the defendant, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified in Article 83.5 of the GDPR.

FOURTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the defendant submitted a written statement of allegations in which, in summary, they stated that:

There is a video surveillance system installed on the facade of the residence. At the time of the installation of the system, privacy masks were installed to avoid capturing the public road. To ensure the security of my residence, it is necessary to capture a minimal portion of the public road, being completely impossible to place the cameras in another location.

On October 31, 2023, the company that installed the security cameras certified:

That the installed security cameras were oriented to capture exclusively the private property of the owner, avoiding focusing beyond the immediate vicinity of the entrances to the property.

They provided images of the cameras, their location, and the area of the public road that they capture.

FIFTH: On March 22, 2024, a proposal for resolution was made, proposing that the Director of the Spanish Agency for Data Protection sanction Mr. A.A.A. with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, with a fine of €500 (Five hundred euros).

SIXTH: On April 26, 2024, the defendant submitted allegations to the proposal for resolution in which, in summary, they stated:

Article 5.1.c) of the GDPR does not refer to any infringement, but merely establishes principles

regarding personal data.

Nor does Article 83.5 of the aforementioned Regulation mention the classification of possible infringements, as it only contemplates the quantification or grading of possible sanctions.

If the proposal is accepted, it would result in a flagrant violation of a basic principle in sanctioning matters, such as that of typicity, leaving me in a clear situation of defenselessness, since the imposition of a financial sanction is requested without citing the specific provision where the alleged infringement is defined and classified and its grading.

In the case at hand, there is no doubt that the principle of "data minimization" has been scrupulously complied with, as I provided a report from the company that installed the cameras specifying that the cameras exclusively capture images of the entrance to the property. And the company itself states that it has placed the corresponding signage indicating the presence of the cameras.

I also attached some photographs in which the location of the cameras can be verified.

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I attach a new report from the installing company stating that the location and alteration of the security cameras have remained unchanged "since their commissioning," which rules out the possibility that they had a greater range at any earlier time; and no different conclusion can be reached based solely on the complaints made by the agents of the Local Police.

From the actions taken in the present procedure and the documentation in the file, the following have been established:

PROVEN FACTS

FIRST: The file contains a report dated February 8, 2023, from the LOCAL POLICE OF ALBACETE, which states that, following the initiation of file EXP202300060, the reported party is responsible for two cameras directed at the public road, without prior administrative authorization for this and without being properly signposted with the required informative signs of the monitored area. Furthermore, the report indicates that it has been verified that the aforementioned cameras continue to be located recording the public road, although a sign indicating the monitored area is installed in the vicinity.

SECOND: The party being claimed states that there is a video surveillance system installed on the facade of the residence. At the time of the installation of the system, privacy masks were installed to prevent capturing the public road. To ensure the security of the residence, it is necessary to capture a minimal portion of the public road, making it completely impossible to place the cameras in another location.

The installing company of the security cameras certifies that the installed cameras were oriented to capture exclusively the private property of the owner, avoiding focusing beyond the immediate vicinity of the entrances to the property. It provides images of the cameras, their location, and the area of the public road that they would capture.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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Response to Allegations

In response to the allegations presented by the claimed party regarding the proposed resolution, it should be noted that this Agency has proceeded to examine the evidence provided, concluding that, indeed, there is no evidence in the file that excessive capture of the public road has occurred, and therefore, applying the principle of presumption of innocence, it is concluded that a sanctioning resolution cannot be proposed in the present file, as no infringement of data protection regulations has been demonstrated.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. The relevance in the processing of data must occur both at the time of data collection and in the subsequent processing that is carried out on them.

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In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the area subject to the

installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras may not capture images of third-party private spaces and/or public spaces without duly justified cause, nor may they affect the privacy of passersby freely transiting the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

V

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be complied with.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt the appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided that there is a risk to the rights and...

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In the event of a breach of the rights of individuals, it must be reported to the AEPD within a maximum

period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the section "Guides and tools").

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the section "Guides and tools"), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing it carries out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,

VI

Conclusion

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Based on the above, having analyzed the allegations and evidence provided, in particular the certificate that the privacy mask and images of the field of vision were active, it can be concluded that it has not been proven that the respondent captured excessive images of the public road.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been proven, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of this procedure as there has been no proven commission of any administrative infringement in the matter at hand.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for

Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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